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Post-Acceptance Rejection of a Manuscript

March 2002

Summary of Listserve discussion on Post-Acceptance Rejection of a Manuscript by Michael Callaham

There was a lively discussion of this case, which was unanimous in concluding it is not acceptable for a journal to withdraw acceptance after it has been issued for reasons that have nothing to do with the merit of the paper or the actions of the author. The following points emerged in the discussion:

- There is a mutual agreement or social contract between the journal editor and the author once a paper is accepted. Each party has agreed to perform in a certain way to gain a desired goal, and each has accepted obligations. The author represents that the paper has not been and will not be published elsewhere and agrees to abide by journal requirements, and to convey the manuscript and its copyright solely to that journal. The editor has made a commitment to publish the article. That commitment is moral and ethical, and probably legal as well, as the letter of acceptance is an implied contract.
- The reputation of a journal is based on trust, both by authors and readers. If the commitments of a journal can be changed retroactively at will, trust will be damaged.

- By changing his mind and later rejecting the paper for no reason other than the journal's convenience, the editor is not only breaching this social contract, but also virtually guaranteeing a significant delay in publication, since the author must now start the entire submission and review process over somewhere else. This poorly serves the science in question.
- If rules are to be changed, this should be announced in advance and should only apply to those papers submitted after the new rules are made public. Authors can then choose whether or not to submit to the journal under those conditions.
- Authors do not exist to "serve" journals. Authors and editors both have an obligation to readers, through a mutual agreement of trust and commitment to quality.
- There are many alternative solutions to the problem of having an excessive backlog of papers to publish, which would be ethically preferable to this one. These could include advising authors of the problem at the time of submission, adding pages to the journal, publishing an extra issue or supplement, placing a moratorium on acceptance of new papers, asking for voluntary manuscript withdrawals, or expanding the number of articles published as electronic versions only.
- An author treated this way has very little recourse. (There may be legal remedies, but they will be very slow and expensive). Journals should consider having an ombudsman who can evaluate and intervene in disagreements between the editor and authors, as well as having a written policy on the process for appeal of editorial decisions. An international medical scientific press council has also been proposed to address these issues.
- There was discussion of the obligations of a new editor when assuming leadership of a journal that has a backlog of accepted papers that may not meet the new editor's quality standards or preference for journal content. The social contract between an author and editor is an organizational one which does not change when the person occupying a particular position changes. Thus, the new editor is bound by the manuscript decisions of her predecessor, and cannot change the standards retroactively or rescind the acceptances.

The Discussion

To: WAME Ethics Committee

I hope that you will consider an issue in editorial ethics that is raised by an author rather than an editor. Four months after a paper of mine was accepted in final form, I received a letter from the editor rescinding the acceptance, not because of a flaw they found in the paper or any misconduct on my part, but simply because they wanted to reduce the publication delay for other papers. Is this acceptable editorial conduct? If not, what would you recommend I do to respond?

I have retyped the two relevant letters below, redacted to conceal the journal's identity per the instructions on the WAME web site (though I question whether the editor deserves this discretion).
Text of Letters:

Dated 16 October 2001

"We are very pleased to accept your revised paper for publication.

[Paragraph discussing timing of publication and page proofs. I have not included this because it may identify the journal.]

"May we remind you that your paper is accepted for publication on condition that its contents have not appeared elsewhere. Could you therefore not discuss your paper with the medical or lay press until we have published it."

Dated 15 February 2002, received 4 March 2002

"I am sorry to have to write to you with bad news. I'm afraid that we are now not able to publish your paper, which we had accepted. We do not take the decision lightly.

"We received over [number] submissions last year and have run into severe difficulties with publishing [section name] articles. What we face is a backlog so severe that all papers face an unacceptable delay to publication. Rather than impose an arbitrary moratorium and decline to accept any further [section name] papers for the foreseeable future, we have decided our readers' interests will be better served by reconsidering, with a tighter threshold, the papers we have already accepted.

"I realise that this rejection will be very disappointing for you, but I do hope that the work you have done in response to peer review at [journal name] will make it easier for your paper to be accepted by another journal.

"Thank you again for letting us see your paper, and I hope that-despite this unhappy experience-you will continue to send us papers.

"Please accept our sincere apologies for this harsh and unusual decision."

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Michael Gordon: I believe it is unacceptable behaviour. I believe the journal should have offered you publication that might be delayed (that has happened to me many times as an author) and if that was not acceptable to you to allow you to submit to another journal. I find such an action not in keeping with the acceptable relationship between authors and journals- authors are not there to "serve" journals, they are both their to serve the reading public through an mutual agreement of trust and commitment (quality, originality etc.). I am not sure what more you can do however other than what you did in registering your complaint. I would also if an appeal does not work write a letter to the editor of the Journal which you should "demand" as a courtesy and respect be published.
They can reply to it and let the readership and other authors understand the dynamic.

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Dana Lawrence: I also think it is unacceptable. Your paper had been accepted and was in queue to be published, despite the long lag, and you had made plans as a result. To return the paper to you is to force you to submit the paper elsewhere, with the accompanying delays for review, re-review and probable acceptance, which then puts you into another queue for later publication. Your science is thus poorly served. I would certainly argue the issue on this. The editor here should make this change proactively, for any paper accepted after the date of his or her decision; no paper already accepted should have to be affected by this decision.

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Eugene Tarnow: Am I completely off if I say that a lot of peer review serve no other function than to exclude perfectly good articles? These editors were perhaps more honest about the problem?

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Rob Siebers: I feel the author has been harshly treated by the editor of this journal. The author's article had gone through the usual review process, modified the article in response to the reviewers, the revised version had ultimately been accepted by the journal, and had been informed in writing that the article had been accepted for publication.

For the editor to now rescind, based on a severe back-log of accepted papers, is unacceptable. I believe the editor, has a moral, ethical and legal responsibility to publish this author's article.
The final decision on acceptance of an article, is that of the chief editor(s). Once that decision has been made, and communicated to the author, the editor is bound to stick to that decision, unless, for instance, the editor has become aware that the accepted article is potentially fraudulent or possibly a duplicate publication. Even then, the editor has

to go through careful checking before finally retracting the written initial acceptance of the article. I do not feel that publication problems at the journal is grounds for rescinding what is essentially a contract between the author and the journal.

I would like to hear from other biomedical editors re their editorial policy on this matter. It is policy of the New Zealand Journal of Medical Laboratory Science that once the final acceptance letter has been send to the author, our Journal has a legal obligation to publish said article. The acceptance letter is a contract between the Journal and the author.

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Michael Gordon: I think this has nothing to do with that issue- the article was accepted which means the process did fulfil its purpose- the reason for later rejection seems to be very different. I do not want to mix up issues and this peer review issue is another topic which has been beaten to a pulp already- so let's try and stay on track here.

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Quentin Rae-Grant: I entirely agree with Dr Siebers. The Editor-in-Chief makes the final decision and that is binding on the Journal. Reasons such as finding space can be dealt with in other ways than revoking a contract.

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Andrew Bottomley: This sadly is both unacceptable and unfair. I believe it appears the author has followed the policy of the journal and then to be rejected in such a manner is something that needs careful reconsideration. If other journals followed a similar route this would lead to a lack of credibility within academic research journals and this should be avoided.

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Margaret Rees: I think this is unacceptable. The journal should have told author at the outset before it sent the paper for referring that it had a backlog, so that the author could have chosen to submit elsewhere.

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DK Sahu: I think everyone agrees that a manuscript cannot be rejected after acceptance unless it is found to be fraudulent/redundant. We all also know that this is not the first of its kind of incident. (N Engl J Med 1984;312:658-659)

Now, What should be the step(s) taken by the author? Though this is not the policy, can WAME request the journal editor to revert this decision? What if the editor declines to revert the decision on the request of the author/WAME? How do we prevent such incidents in future?

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PiaPini: I agree with these sentiments entirely. The Editor should have the final decision about whether to accept an article, and in this case he/she made that decision in the letter of acceptance, which as you say is a contract between the editor and the author. To rescind the agreement just because of a back-log of articles is unacceptable behaviour by the journal. The only justification for reversing the decision would be if the integrity of the accepted paper were compromised in some way.

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Bruce Smoller: I have followed this story with great interest and am very surprised at the course of action undertaken by the editors. There are other solutions to the problem. It seems as though a letter of acceptance is an implied contract, requiring the journal to act in certain ways, and certainly putting restrictions on the authors (cannot submit or publish the work elsewhere, etc.). This being said, I think that reversing a decision for the simple "convenience" of the editorial is completely and totally unacceptable. Far preferable (though not in the mind of the editor) to initiate a moratorium on accepting new papers, or to ask for voluntary manuscript withdrawals, or even to negotiate expanding the size of the issues for a couple of issues to the course taken. I hope that I am never so short-sighted in overseeing the Journal of Cutaneous Pathology. Thank you for allowing me to express my opinions.

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Barry Pless: We run into similar problems from time to time i.e. unable to print a paper in the issue for which it was scheduled because of lack of space. The solution we pursue is to notify the author that it will absolutely be published in the next issue. Thus far, everyone has accepted this graciously. I see no reason why this could not have been done in this instance. I can sympathize with an editor who cannot be certain how much space the selected copy will require (in fact I would appreciate suggestions from others who have this problem i.e. fixed number of pages and quarterly publication). But I cannot sympathize with the solution in this case.

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David Cone: I agree with the other members of the list that reversing the acceptance decision for a purely logistical reason is unacceptable. Managing the space requirements of the journal is a joint responsibility of the editor and the publisher, and both should be on top of page counts well enough in advance to anticipate whether there is space to accept a given paper. In other words, the acceptance decision should be made with pages in mind. While it is

reasonable to reject a paper up front due to lack of space, backlog of similar papers, etc, it is not reasonable to do this once the paper has been accepted for publication.

Shobna Bhatia: Withdrawing an article after accepting it seems to be unfair to the authors especially if the article fulfills all the requirements of the Journal. In case of backlog, the Editor should have informed all the newer article submitters that their manuscripts could be delayed and they may withdraw the article if they wish to. This would give the authors time to submit the article to an alternative journal. For accepted articles, outright rejection is not the solution. The Editor should have informed the authors who could have made a choice of withdrawing or waiting for publication. If the authors resubmit their article to another journal, the time taken for peer review process and final publication will probably be longer than the delay due to backlog in the original journal.

Annette Flanagin: I agree with the previous comments and concerns. However, I wonder if anyone would comment on a related ethical dilemma with regard to the inventory of accepted papers. For example, I have heard of acceptances being rescinded after a new editor takes over and inherits a backlog of accepted papers from a previous editor. In one case the new editor would have been publishing papers for 2 years that she/he had not had anything to do with (and the editor's appointment was for 4 years). In another case, the new editor deemed some of the manuscripts in the backlog of accepted papers to be of very poor quality.

I would like to think that the same ethical standards would apply in the above cases, but they were not so applied.

Michael Gordon: I think that when one takes on a new position as editor or CEO- one is bound by the legal, ethical, contractual commitments of that organization-even if they are not what you want. The implications of not doing that are enormous- what if a company board did not like what the company had agreed to with a number of suppliers (in this case it is the authors rather than the bolt manufacturer) and said, let's get a new CEO who will rescind previous contracts- what a terrible reputation one would have (plus enormous legal liability and I believe ethical discredit). So as we say in Brooklyn, "Thems the breaks"- one should take the job with eyes open and understand that previous obligations are what they are- in this case- the editor has two years to turn the Journal around if that is the mandate and expectation and can start working on it with editorial and other factors- in the meanwhile.

(Then there is the option of producing occasional supplements to the regular issues that might include (with permission of the authors) so of the articles if they can be grouped around themes.

Tom Jefferson: Let us have the name of the journal, so that in future we can refrain from sending it any of our papers....only joking!

Michael Gordon: Very thoughtful and considered reply- I had "framed" it in legal terms and contractual terms mainly to set the concept of mutual agreement whether written or verbal does have some obligation on both parties- whether this is "legal" or "ethical" it does contain the concept of mutual duties and obligations- as authors we certainly are chided or reprimanded when we do something that is deemed unprofessional, unethical or illegal- so it should be with publishers and journals- whether there should be a formal forum for complaint is another question- I am not sure whether WAME is the place for it to be and what that would actually mean as I am new to this field.

Steven Goodman: I agree with all that has been written. I think that the interesting issue that this brings up is that professional ethics is the only thing we have to fall back on here. I don't believe there are any legal rules, contracts or obligations that either the editor or the author can fall back on, aside from generally accepted and understood behavior. The system hangs together because everyone feels bound by these professional codes of behavior, but when they are broken, we find that they are neither universally understood, accepted, nor enforceable. The word "contract" has been used here a lot, but I doubt whether the acceptance letter is, in fact, a contract enforceable in a court of law (and the time it would take to adjudicate that would render the dispute - and contribution - moot). So this discussion of ethics is important, as it is the only thing that either side has to fall back on in this dispute (although I don't know the history of author-editor disputes that have gone to a legal arena - have some?) The question that I think this poses for us was brought up by Dr. Sahu. If professional ethics is the only ruling authority in this case, and the WAME committee is the only (self appointed?) body that considers such matters, should there be a more formal grievance process to this body on the part of authors, with some (unenforceable) advisory opinion issued to the journal editor by WAME? This could open some very unwanted floodgates, but the lack of any avenue for appeal or redress by authors (except shopping to another journal) on issues of some career and even health importance is not desirable either. It would certainly make WAME more visible, and I suspect that potential embarrassment in the community of an editor's peers could have both an edifying and deterrent effect. But the potential volume of meritless complaints would be a big problem as well. Another few points here. We have not officially heard from the editor in this matter, and although it does look bad for him/her (assuming the letter is a true and exact transcription), no judgments should ever be made without hearing the other side. The second issue is that many editors may be honestly unaware of the professional codes of conduct, and act in unethical ways as a result of ignorance,

inexperience, inability to withstand pressure from the publisher, and of course, unaccountability. WAME could play a valuable role in helping to address all of those issues. I would be interested in others' comments on this, and the past history of such proposals or discussions, as I am sure this is not the first time this has come up.

Ashok Shah: I think it was patently unfair on the part of the Editor to withdraw acceptance on the grounds that they had a backlog of accepted papers. We once had a paper which was accepted in spite of the fact that it was very poorly drafted and had somehow escaped editorial correction. It was caught when the proofs came back. We invested about 6 months putting the paper in shape as we had accepted the paper. The acceptance letter has great significance as the author may have quoted the paper as ' in press' .

The Editors should review their decision.

Richard Rothenberg: I'm pretty sure that what the editor did was not illegal. It is debatable as to whether or not it was ethical (in some strict sense of the term). But it certainly was ugly. Editors have a fair bit of discretion (some would call it power), and are able to set policy, but the rules of the game should be apparent to participants before the game starts, and not changed midstream. The dereliction here, as I see it, is a rupture of the social contract. The ties binding author, editor, reviewer, and others connected to publication are fragile in many ways. Trampling on the implicit contract can have irremediable effects on the process. As an editor with a considerable backlog in hand (unfortunately), I appreciate the editor's predicament but agree with the author that the solution is wholly unacceptable. What recourse? Very little that I can see other than the condemnation of the editor's peers, should it be forthcoming.

(Note: This message got electronically waylaid, and is being resent after many others have weighed in. It seems a bit superfluous now, but at least adds to what appears to be a unanimous voice.)

John Graham: What an interesting correspondence! Two courses of action might help both authors and editors benefit from this sad tale.

It is not clear. of course, whether the editor in question is a member of WAME and whether they may have read this series. It might be appropriate for the author to forward copies of the responses to the editor for comment, even suggesting that he or she break cover to enter the debate and even defend their action.

The second issue is what editors should do when faced with lengthening delays in publication. The action taken by this editor seems a poor example of planning, and there must be fairer and more respectable strategies to solve the problem of over-popularity of one's journal: an extra issue or two to mop up the backlog; a disclaimer to individual authors or to the authorship in general announcing the current length of delay; a bumper issue (if the journal is as oversubscribed as the story suggests the publishers can't be too cash-strapped), no doubt others can be suggested by our ingenious membership...

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Juliet Richters: There is a practical problem here that is obviously difficult for small-to-medium-sized journals to manage. When the % of papers receiving 'revise & resubmit' decisions is high and rising (such as when a journal is rising in status), the % of papers that are resubmitted, adequately revised, rises even faster. The editors are then faced with a growing stream of papers that are better than those published by the same journal in the recent past. How then to reject them, even though the publishing manager is screaming at the blow-out in delay-to-publication? In this situation the editors can impose upon themselves a strict rule such as 'accept no more than 4 of each 10 publishable papers'. This keeps the acceptance rate within bounds but is not really fair to authors, as their chance of acceptance goes up and down erratically depending on the quality (and, let's face it, journalistic interest) of the other papers that happen to fall in each bundle of 10. Authors expect this element of chance when they submit to the Big Five, but not when they submit good work to a national journal that may be the only appropriate outlet for their work.
The only suggestion I have is that we keep on trying to explain to authors why a delay between submission and decision may be in their interest ...

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Drummond Rennie: The thoughtful correspondence about this case, presented to the WAME listserv by Mike Callaham, has been a perfect illustration of the way WAME should work. WAME itself is so insubstantial, being little more than a discussion group, that it is demonstrably not a self-appointed body. It's power comes from the free and wide exchange of ideas and opinions.
A little history. When the aggrieved author, who had never heard of WAME, first wrote to me , I replied to him in an e-mail which read in part:

> “First, I assume that the acceptance is unequivocal, with no contingencies or outs. If this is the case, and you give me the impression that it is, then what you describe is entirely unethical. They have harmed you by keeping you from submitting the paper elsewhere and therefore considerably delaying publication.

> It would be different if, after acceptance, they had discovered some fatal flaw in your paper, or found out that it was unequivocally the product of misconduct, or that you had published the substance elsewherewithout telling them. I have instances of all these occurring.
>
> I do not know of any case like your's in my 25 years as an editor at the NEJM and JAMA and I would challenge them strenuously and persistently.
>
> Obviously, you are not thinking of going to law - though the letter of acceptance may be construed to be a contract, who wants to ruin their lives bankrupting themselves to make lawyers rich?
>
> I would hope that, if they fail to correct this injury to you, you would draw this to the attention of the entire editorial world by putting the facts, in the form of a question, to the WAME (World Association of Medical Editors) website, so that the many who watch this site can know what journal to avoid."

I am delighted that he took my advice and that we have all been able to read this important exchange of views.

I now believe that, possibly as a consequence of this publicity, the decision to reject has been rescinded and the author will be, as they say, made whole.

Steve Goodman says that it would be important to hear from the editor, and he is completely correct. I trust we shall: a valid reason for the extraordinary editorial decision would be worth reading.
However, I gather that WAME's policy is not to reveal the name of the journal, and as someone who has to reject many papers, most of which the authors think are excellent, perhaps it's good policy. Still, as the last sentence in my letter to the author suggests, if the author's complaint to the editors, or the correspondence in the WAME website, or both had not been successful, I would have hoped that WAME might rethink this policy in certain cases. What other hammer could or should WAME wield but publicity and if the facts are as the author states, where's the risk?

Iain Chalmers: It is a pleasure to see WAME addressing the interests of aggrieved authors in this way. As an author, I have been grateful to contributors to the WAME listserve. Three years ago, I asked subscribers to the listserve whether the editor of the British Journal of Obstetrics and Gynaecology had any right to claim ownership of an unpublished manuscript that I had wished to withdraw because he intended to publish it so long after the commentary criticized in it (he went ahead and published it three months after my attempt to withdraw it). A Lancet columnist drew attention to this case (Lancet 1999;353:509). This prompted the editor of British Journal of Obstetrics and Gynaecology to

attempt to justify his behaviour (Lancet 1999;353:1190-1), a statement to which I responded in a letter (Lancet 1999;353:1191) which concluded by commending the Lancet's appointment of an ombudsman (Horton R. The journal ombudsperson: a step toward scientific press oversight. JAMA 1998;280:298-99).

Nine years ago, at the 2nd International Congress on Peer Review in Biomedical Publication, Doug Altman, Andrew Herxheimer and I presented a proposal for an international medical scientific press council (JAMA 1994;272:166-167). To illustrate the need for some such court of appeal for the victims of editorial misconduct, we gave brief details of three cases.The first of these related how, in 1983, the editor of Obstetrics and Gynaecology had republished in full an article that had previously appeared in another journal, stating that this was with the authors' permission, when the authors had not in fact been consulted at all. This re-publication was accompanied by a hostile editorial attacking the article. The authors were initially refused the right of reply to the editorial, and when we tried to publish an account of the case, the editor gave a misleading account of events to try to dissuade another editor from publishing our manuscript.

Not long after this example of gross editorial misconduct, the editor in question died, unrepentant. As I believed that the abused authors deserved to receive an expression of regret from the journal, I urged (quite unprompted by the authors) the offending editor's successor to write to the authors expressing regret for the way that they had been treated by his predecessor. Unfortunately, he was not been prepared to see this simple courtesy as any part of his responsibilities. When the current editor took up post, I wrote to him, too, urging him to write expressing regret to the authors, but so far, as far as I am aware, no action has been taken. I cite this 20-year-old example of editorial misconduct, both because I am very familiar with the details, and because I believe that closure could be achieved by a simple act of courtesy. And I continue to hope that an expression of regret - if not an apology - will be sent from the journal to the abused authors, even though it is now nearly 20 years since the editorial misdemeanour occurred.

Meanwhile, I reiterate how much I welcome the use of the WAME listserve to discuss matters of editorial misconduct. This is a sign that the editorial community is becoming sufficiently mature to acknowledge that the behaviour of editors is not always beyond reproach, and that the grosser abuses of editorial power should be exposed and discussed.

Richard Smith: I cannot tell a lie. I chopped down the cherry tree.

Yes it was me--"holier than thou" Richard Smith, editor of the BMJ—who rejected several papers that I had already accepted. I've already recognised that I did the wrong thing, and I've emailed the authors to say that we will publish

their papers.

It's a strange thing to read a gallimaufry of sanctimonious editors passing judgement on your actions, not least because I'm usually on the side of the sanctimonious (and may still be). I'd like to make some observations:

1. A promise is a promise, but have none of you ever broken promises? Have none of you ever said, for example, that you will go to a meeting and have then not gone? Have you never agreed to write something and then not written it? There are circumstances, I'm arguing, in which promises can be and are broken. It's a good principle not to, but it's unwise to have an absolute position that promises can never be broken.
2. As far as I can tell, nobody in this debate has mentioned readers. Editors of academic journals are, I suggest, too bothered about authors and insufficiently bothered about readers. Our primary justification for rejecting the papers was that our readers should not be punished for our mistake (of accepting too many papers).
3. People make mistakes all the time. You've probably made many today. It's not difficult to accept too many papers, especially when you see (as we have) a 20% increase in the number of submissions. The BMJ received over 6000 papers and 7500 letters last year. Isn't it possible to admit to a mistake, apologise to those who have been damaged, and move on?
4. We should recognise as well that papers are not acceptable or unacceptable. They are on a range from the best to the worst, and we all try to accept the best that we have submitted. If we accept too many then we "cull" the least good of those we have accepted. An alternative strategy we considered was to not accept anything for the next three months. But were we to do that we ought to tell authors that we were doing so-and we would be giving our readers less good papers than we might otherwise have done. Should we tell them?
5. We have "solved" the problem with money. We will simply publish more pages.
6. This is the first time that we have "culled" papers (and they were essays rather than original studies), but we have several times culled letters and personal views (short, subjective pieces). These culls have not created the same protests.
7. There are no legal obligations on us to publish. Many of the editors who have entered the debate have stated that what I have done is "unethical." But few have advanced arguments. Ethics is not a matter of assertion but rather a matter of argument, of balancing different imperatives. If we are going to be in "the ethics business" we may need to raise our game.
8. We must all be accountable. I am accountable to the BMA, the owners of the BMJ. We should all as well include in our guidance to contributors (formerly known as authors) a section on "How to complain about us." I haven't done that but have had it on my "to do" list for four years. I think I'd better get a move on.

Yours in sin.Toodle pip.

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Fintan Steele: Very nice thoughts, thank you.

One quick question...how many authors have you run into who think their paper is *not* excellent ?

Okay, I know there are a few.

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Eugen Tarnow: I loved Richard's piece. Honesty is much to be preferred over empty sanctimony. And "ethics" discussions in general tend to be useless - if there are no rules and simple and effective and commonly used ways to complain for authors, in which the complainant has real power, there is no recourse for authors. Or for science, for that matter.

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Steve Goodman: After having stressed the importance of hearing from the editor, I was rather surprised (to use classic British understatement) at the tone and substance of this non-apologia. (I hope I am not now derided for having a low threshold of surprise.) However, it is nice that it does at least include an acknowledgement of an improper action and the appropriate corrective. I will leave it to others to comment on the remainder, although perhaps this should be allowed to stand as the last (sad) words on this matter.

Yours in sanctimoniety,

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Michael Gordon: I am puzzled now by what has gone on. I am a new editor of a new journal. I have been an author for years. I had always thought that there was a mutual responsibility- of course on behalf of the readership for which both parties were directing their efforts- that the article was well done and met whatever the criteria are for the Journal which are published. I had always believed that if accepted that meant that at the time of the decision the article met the criteria that the Journal demanded. As authors we are expected to agree to not submit elsewhere- i.e..not in parallel but only in series which takes lots of time. We usually sign affidavits that say that the work is original and that we have not published it elsewhere etc. Of course some authors stretch the rules and some probably out and out or dishonest.

But to say that there is not an "ethical" basis of the relationship I believe discounts the mutually trusting relationship that is established. I believe that it is in the realm of "ethics" because that is what governs our interactions in all

domains- in this one we are discussing the relationship of trust between authors, editors and readers- if that is not an ethical relationship based on trust then what is?

Mervyn Deitel: Dear Dr. Callaham: You have here another unethical action. The journal is obligated to publish your article, unless the journal is forced to desist from further publication, e.g., bankruptcy. They can properly decrease the number of acceptances of future articles, but it is improper for them to reneg now on prior accepted articles. As you have a definite clear letter of acceptance, I would name the journal. You may be one of a number of authors treated this way. At the least, you should write a Letter to the Editor.

Tim Albert: I am not sure I think this is over yet. I read the BMJ every week. I do so because I have trust in Richard Smith, the editor, to choose wisely on my behalf, without fear or favour. I now learn that one of his authors (who will accrue considerable personal benefits from publication) has protested over a decision, and with support from a group of like-minded people has succeeded in getting him to change his mind. Should I continue to trust Richard Smith? Has he behaved ethically? Should I report him to COPE (where he will be judged by his friends?)

Richard Refinetti: The discussion was interesting enough while we were simply judging whether it is ethical to reject a previously accepted article. The discussion became even more interesting when Richard Smith (the "wicked editor") admitted that the outrage expressed by WAME members would make him revert his action (but clearly not change the way he felt about it). Now, Tim Albert makes the discussion even more interesting by practically saying that an editor's sole obligation is to provide a good product to the readership regardless of the costs to authors. I guess this shows only that some editors become businessmen to such an extent that they no longer know what it is to be a researcher, practitioner, or author. Maybe there is nothing that can be done about it, but I certainly would like to know the names of editors who are like this so that, as an author, I can avoid their journals. Like Albert, I trust top journals to objectively select the best articles for publication (even if this means that an article of mine will be rejected, of course). However, I also expect a journal to stand by its decision to publish an article after it has formally accepted it.

Elena Ryder: Am I wrong or is not Richard Smith the person that is one of the main speakers at all WAME meetings, belongs to the Ethics Commitee and always make funny comments? If this is correct, I don't think we, WAME members, should allow him to participate as the "king" of the room because what he did (including his answer) is not

funny at all. I agree with all the comments of Refinnetti and Albert, and I will let know the researchers that use BMJ to publish his articles (and even those who read it) about this affair.

Eugen Tarnow: I would continue to trust him because he did not lie to the author about why the manuscript was not going to be published! I would trust people who tell the truth and correct mistakes when they make one. The people I would not trust are the ones who seem above the law, the ones who are particularly sanctimonious!

I think that all editors have to like, btw, and anyone who disagrees should not be trusted! How can they really tell if a manuscript is good or bad when their referee scientists, who are supposedly the experts, often cannot? And remember George Lundberg? He apparently got fired for doing what he thought was the right thing. Since few other editors are fired that must mean most of them do not follow their moral instincts all the way. That's my reasoning.

And, by the way, authors are no better. Everybody has their problems.

I also feel very strongly that this list should not report individuals. Then it becomes a scape-goating thing and all the sharks will eat the innocent to no betterment of anybody

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Michael Callaham: As the person who posted the case of the retroactively rejected author on the list, I have been amazed by the volume and energy of the comment. Lately I am more than amazed, but also a little dismayed. I would ask that we not focus on individuals, but on general principles. This only seems fair to me when we essentially have few or no commonly-accepted standards. For myself, the key point of this and so many other WAME discussions is that everyone has their own internal, strongly-held, unwritten code of conduct, and we as scientific editors have nothing much to turn to comparable to law, regulation, or statement of principle. I would like to suggest we focus on developing such agreed-upon general standards (in writing) first (and WAME is the logical organization to do it). Once the community of science editors (and authors, and perhaps readers) agrees that they are appropriate and that they are standard by which we should all be judged, we can start to think about methods of judging people by them.

Dana Lawrence: I did not agree with Dr. Smith's original decision, but he acted promptly to correct the mistake, admitted it and went public with the fact that it was indeed he and BMJ who was involved. I think initially many of us who read this might have thought the issue pertained to a small-circulation lesser-known publication, so we read and responded with passion, indignation, and some anger. Then we found out it involved one of the world's leading

medical journals. All this shows is that we are all human, we are all capable of erring, and we all have the opportunity to rectify mistakes we make. Dr. Smith did so, and good on him, mate. Let he who is without sin cast the first stone, etc...

While this issue does not involve peer review, Eugene Tarnow continually asks us to consider the human aspects of publication. He raises an important point. What checks and balances can we offer our readers? No matter what we do, ultimately what we do is a human endeavor and is therefore always susceptible to human foibles. But I disagree with him over whether we follow our moral compass; I try, lord knows.

With regard to the issue that Dr. Smith grappled with, I face a similar problem. The main journal I edit has seen an astonishing growth of quality submissions, and our publication lag times are now about 12 months (from final acceptance); this may yet grow. Circulation will not allow us to move from our current 9 issues per year to 12, or to increase page counts.

E-publication is of some help. I can increase the percent of rejections, I suppose, but if I continue to get good papers, what to do if those authors have only limited other venues for publication? This is essentially the problem faced by Dr. Smith (except that his authors could have selected other publication once their paper was returned). Hard choices have to be made. I hate letting good papers sit for a year before publication.

I find the WAME list extremely valuable. I, too, think we should continue to discuss issues without naming names, though I recognize that it was Dr. Smith himself who finally provided the name.
I hardly think Dr. Smith has lost any moral authority as a result of one wrong decision. C'mon! I look to BMJ for guidance on editorial matters as much as I do for scientific ones. I certainly will continue to do.

DK Sahu: Some conclusions from the discussions over last few days I can draw are:

1. Contributors should be aware of their rights, journals' editorial policies and organizations such as WAME and COPE.
2. Editors should also aware of the rules and regulations related to the editorial process and ethical and legal aspects related to their decisions.
3. Journal editors have equal responsibilities towards the contributors and readers, as they are answerable to the owners of the journals.
4. On receipt of a manuscript for review editor can inform the contributor the likely time period for publication of the manuscript if it is accepted based on the backlog and the number of accepted articles.

5. Electronic 'only' publication can be considered as a way out for the ever-increasing number of manuscripts received by the journals.
6. Journals should have ombudsmen and declared policy on how to appeal against the decisions of the editors.

Though, there is no legal obligation on the journals to publish, isn't an acceptance letter a contract between the contributor and the journal? By this contract the contributor cannot publish the accepted material in any other media, so why this contract can be only one sided?

One of the easiest way to increase the awareness of rights and responsibilities of the contributors, reviewers and editors is to provide links from a prominent place on the website of the journals to the websites of the organizations such as WAME.

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Tony Woolfson: C'mon guys!

Who's holier than whom here?

We do seem to have pretty well universal agreement (with which I concur) that Dr Smith didn't make the wisest decision the first time round. But he did put it right.

And let us be clear about the "poor" authors here. It is all very well for Dr Refinetti to throw stones, but most of us have been on the other side of the fence for some considerable time in our lives, and are very aware of the careful calculations of university employees as to what form of research and publication in which journal is most likely to produce the next research grant. I don't see the academics being any less political or mercenary than the businessmen editors. If I slight Dr Refinetti, I apologise. The comment is not personal.

As to Dr Smith's reply, I have a comment from my experience as a translator. There are often great misunderstandings about what something means when produced by someone from one culture and read by someone from another. This may be very presumptuous on my part (and Dr Smith may of course correct me if I am wide of the mark), but my reading of his letter was that he felt very awkward about the affair, and this was couched in terms that are culturally totally English. Hence the (slightly inappropriate) jokiness. I cannot imagine that he or the journal did not take this seriously. I trust he will forgive me for usurping his right to explain what I think he meant, but this is intended to help resolve the issue. Toodle-pip was an expression used by Englishmen of the Bertie Wooster type, and just means "bye for now".

Toodle-pip.

Iain Chalmers: Good on you, Tony! Very well put.

Teresa Shafer: Thanks, Tony, my sentiments exactly. Enough already

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Jose Florencio Lapeña Jr.,
MD Secretary, WAME
lapenajf@upm.edu.ph (https://web.archive.org/web/20220303081237/mailto:lapenajf@upm.edu.ph)

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